Superior Court of California, County of San Joaquin

Tentative Ruling

Date: 07/10/2026 **Case Number:** STK-CV-UF-2026-0001032

Newanforbi Brenden Nghesi vs Katie Palacios, Clinical Director et al.

Event: Demurrer
Event Date: 07/15/2026 at 9:00 AM in Department 10A

Demurrer
TENTATIVE RULING
Newanforbi Nghesi v. HOPE Program et al.
Case No.2026-1032
July 15, 2026

The court having read and considered Defendants' Demurrer to Plaintiff's First Amended Complaint (FAC), Plaintiff's Opposition and Defendants' Reply rules as follows. The court agrees with Defendants' analysis and the authorities cited in their Motion and Reply that exhaustion of administrative remedies herein is a jurisdictional requirement to the filing of Plaintiff's FAC. The court finds Plaintiff failed to meet this jurisdictional requirement prior to the filing of his FAC. Therefore, Defendants' Demurrer is GRANTED WITHOUT LEAVE TO AMEND.

Hon. George J. Abdallah, Jr.
Judge of the Superior Court